

be in a condition to invest the personal estate, and gives the tenant for life the interest from that time (a).

Devise of real estate upon trust to sell and invest proceeds and rents until sale.—And, conversely, if a testator devise his real estate to be sold and the produce thereof, and also the *rents and profits of the said estate in the meantime, to be laid out in Bank Annuities or other securities,* upon trust, for A. for life, with remainders over, the accumulation of the rents is not extended beyond one year from the testator's death, but the tenant for life is entitled to them from that period (b).

10. **Produce during first year from testator's death.**—From the language used by Lord Eldon, in the case of *Sitwell v. Bernard* (c), (in which the rule, that the accumulation, where expressly directed, extends only to one year from the testator's death, was first established,) an impression prevailed that in no case was the tenant for life entitled to the income during the first year of the fund or land directed to be converted, and both Sir John Leach (d), and Sir Thomas Plumer (e), sanctioned this doctrine by their authority. However, Lord Eldon had no intention of laying down any such rule (f), and it has since been settled that where there is no express direction to accumulate, the tenant for life has an interest in the first year's income (g), but an interest varying according to the circumstances of the case, as will appear from the following distinctions.

(a) **Income of property applied in paying legacies.**—The tenant for life of a residue is not entitled to the income accruing during the delay allowed for the *payment of legacies*

(a) *Sitwell v. Bernard*, 6 Ves. 520; *Entwistle v. Markland*, *Stuart v. Bruere*, cited *Ib.* 528, 529; *Griffith v. Morrison*, cited 1 J. & W. 311; *Tucker v. Boswell*, 5 Beav. 607; *Kilvington v. Gray*, 2 S. & S. 396; *Parry v. Warrington*, 6 Mac. 155; *Stair v. Macgill*, 1 Bligh, N. S. 662.

(b) *Noel v. Lord Henley*, 7 Price, 251; *Vickers v. Scott*, 3 M. & K. 500; and see *Vigor v. Harwood*, 12 Sim. 172; *Greisley v. Earl of Chesterfield*,

13 Beav. 288; *Beanland v. Halliwell*, 1 C. P. Cooper, *t. Cottenham*, 169, note (a).

(c) 6 Ves. 520.

(d) *Stott v. Hollingworth*, 3 Mad. 161.

(e) *Taylor v. Hibbert*, 1 J. & W. 308.

(f) See *Angerstein v. Martin*, T. & R. 238; *Hewitt v. Morris*, *Ib.* 244.

(g) *Macpherson v. Macpherson*, 16 Jur. 847.